

Filings increased over the past year, driven mostly by misdemeanors and infractions and civil limited cases. The increase in filings is greater than 7 percent for civil limited and unlimited, appellate division appeals, juvenile delinquency, misdemeanors and infractions, and probate.

Terminology and Rules for Counting Filings

Technical definitions of most terms used in this *Court Statistics Report* can be found in the appendixes. Some core definitions are presented here in more detail.

Appellate Courts

APPEAL. An *appeal* is a proceeding undertaken to have a decision of a lower trial court reviewed by a court with appellate authority over the matter. (Certain limited matters are reviewed by the appellate department of the superior courts.) A *notice of appeal* is a written notification filed in the superior court to initiate the appeal of a judgment to the Court of Appeal. The Courts of Appeal have appellate jurisdiction in all trial court matters, except when a judgment of death is entered, in which case the California Supreme Court has appellate jurisdiction. If the matter is appealable, the court must hear the appeal. A *fully briefed* appeal is one in which all briefs have been filed with the court. *Dismissal* of an appeal involves the termination of a case for reasons other than its merit. An appeal that is awaiting a final decision is said to be *pending*. Each notice of appeal is counted as one new filing.

PETITION FOR REVIEW. A *petition for review* is filed in the California Supreme Court to ask that court to exercise its discretion to review a decision issued by a Court of Appeal in an appeal or an original proceeding. The Supreme Court has 90 days to consider a petition for review, after which it loses jurisdiction. If a petition for review is granted by the Supreme Court, then a full briefing occurs on the case; if a petition is denied, then the judgment of the lower court becomes final as to the case.

AUTOMATIC APPEAL. An *automatic appeal* is the appeal following a judgment of death in the trial court. This type of appeal is unique because it moves directly from a superior court to the Supreme Court without first being reviewed by a Court of Appeal. Like other types of appeals, it is fully briefed before being heard. An automatic appeal is counted as one new filing.

ORIGINAL PROCEEDING. An *original proceeding* is an action that may be filed and heard for the first time in an appellate court. This action is not an appeal; rather, it is ordinarily a petition for a writ. Examples of original proceedings include a writ of mandamus, which instructs a lower court to perform mandatory duties correctly; a writ of prohibition, or an order that forbids certain actions; and a writ of habeas corpus, which is described below. Each original proceeding is counted as one new filing.

PETITION FOR A WRIT OF HABEAS CORPUS. A petition for the issuance of a *writ of habeas corpus* is typically filed to contest the legality of a party's imprisonment or conditions of confinement. Each habeas corpus petition is counted as one new filing.

WRITTEN OPINION. A *written opinion* is a document issued by an appellate court explaining the terms and reasoning in its disposition of a case. The written opinion includes a statement of the legal facts in the case, relevant points of law, and the court's analysis and rationale for its decision. In addition to the written majority opinion in a case, concurring and dissenting opinions also may be filed. For each case, only the majority opinion is counted as a written opinion in these tables.

DISPOSITIONS. The appellate court may dispose of a case by affirming or reversing the action of the lower court, or it may send the case back to the lower court for further proceedings if appropriate.